

Mohd. Azahar v. State of U.P.

Allahabad High Court · Division Bench · 28 May 2012 · Writ-C No. 26514 of 2012 · **Writ dismissed; relegated to clause 6.5 and CGRF.**

HEADNOTE

A pottery consumer sought quashing of a recovery citation and a large electricity bill after disconnection and meter dismantling. The Division Bench held that bill-correction grievances must first be raised before the Executive Engineer under para 6.5 of the U.P. Electricity Supply Code, 2005, and thereafter before the Consumer Grievance Redressal Forum. A writ filed to correct bills without exhausting those statutory remedies under the Electricity Act, 2003 was dismissed.

FACTUAL SUMMARY

The petitioner, a pottery businessman, held a sanctioned 37 kVA connection on the LMV-6 schedule. He sought quashing of a 19 March 2012 recovery citation for Rs.2,41,119 and other electricity dues, including minimum guarantee charges, after a 1 January 2012 bill of Rs.5,23,427 comprising arrears and late payment surcharge. Counsel stated that supply was disconnected in February 2012, the meter was dismantled, and the petitioner had not thereafter consumed electricity, so the demand was arbitrary. He had not first represented those facts to the department.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A consumer seeking correction of electricity bills, including after disconnection and meter dismantling, must first approach the Executive Engineer under para 6.5 of the U.P. Electricity Supply Code, 2005, and thereafter the Consumer Grievance Redressal Forum. A writ petition filed in the High Court to correct bills without exhausting those statutory remedies under the Electricity Act, 2003 is dismissed. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 The petitioner had not represented the disconnection and meter-dismantling facts to the department; the Court required a para 6.5 objection to the Executive Engineer, then CGRF, before any writ to correct the bills. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE POST-DISCONNECTION BILL, LPS AND MINIMUM GUARANTEE CHARGES WERE PAYABLE AFTER THE METER WAS DISMANTLED

¶ 1